



Court File Number

_____ (Name of court)
at _____
Court office address

Form 28: Writ of Seizure and Sale

Recipient(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Payor

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

TO THE SHERIFF FOR THE (name of area) _____

An order or domestic contract that is enforceable in this court and that requires the payor to make payments to the recipient is in default.

YOU ARE THEREFORE DIRECTED TO SEIZE AND TO SELL the personal and real property within your area of (Give full legal name of person or corporation, etc., against whom the writ shall be issued.)

Surname of payor or name of corporation, etc.		
First given name (individual only)	Second given name, if any (individual only)	Third given name, if any (individual only)

and to realize from that sale the following sums:

Insert amount to be realized from paragraph 4(b) of the request for a writ of seizure and sale. Insert date that statement of money owed was sworn/affirmed.

(a) \$ _____ and interest on it at the rate of _____ % per year, beginning on (date) _____ ; and

(b) your fees and expenses in enforcing this writ.

(Check appropriate box)

Priority for support payments: insert amount from paragraph 3 of request for a writ of seizure and sale.

Assignment of costs to Legal Aid Ontario: insert amount from paragraph 4(c) of request for writ of seizure and sale.

The sum to be realized includes unpaid support of \$ _____

YOU ARE THEREFORE REQUIRED, under subsection 4(1) of the *Creditors' Relief Act*, to give priority to this amount over other judgments and orders.

An *Assignment of Judgment of Costs* in the amount of \$ _____ has been made in favour of Legal Aid Ontario.

YOU ARE THEREFORE REQUIRED, under subsections 46(4) and 47(1) of the *Legal Aid Services Act, 1998*, to deduct this sum from the proceeds of the sale and to pay it to Legal Aid Ontario.

Fine, bond or recognizance

This Writ enforces the sum of \$ _____ as
a fine for contempt of this court
a forfeited bond or a forfeited recognizance
and made payable to Her Majesty the Queen
other (Specify.) _____

YOU ARE THEREFORE REQUIRED, under subsection 143(3) of the *Courts of Justice Act*, to proceed immediately to execute this Writ without a direction to enforce.

YOU ARE FURTHER DIRECTED TO PAY OUT THESE PROCEEDS ACCORDING TO LAW AND TO REPORT ON THE EXECUTION OF THIS WRIT IF REQUIRED BY THE PARTY OR BY THE PARTY'S LAWYER WHO FILED THIS WRIT.

Date of signature

Signature of the clerk of the court

Form 28: Writ of Seizure and Sale

Court File Number

Name of payor:

Name of recipient(s):

FEES		
Fee	Item	Officer
\$		
\$		
\$		
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\$		
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\$		
\$		
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\$		
\$		
\$		
\$		
\$		
\$		

(Name of court)

at _____

Court office address

Writ of Seizure and Sale

Full legal name of filing party:

Filing party's address for service:

Name, address, telephone & fax numbers and e-mail address (if any) of filing party's lawyer:

NOTE: This writ has no automatic expiry date. It remains in effect:

(a) until it is withdrawn by or on behalf of the party who filed it; or

(b) until it is set aside or suspended by order of a court in Ontario.